

7

(48)

Tentative Ruling

Re: ***Dhillon v. RMR Trans Inc. et al.***
Superior Court Case No. 25CECG04302

Hearing Date: May 14, 2026 (Dept. 403)

Motion: By Defendants RMR Trans Inc. and M&J Truckline, LLC to Set
Aside Default

Tentative Ruling:

To grant and strike the entry of default entered November 24, 2025, and the default judgement on January 12, 2026 against M&J Truckline, LLC. (Code Civ. Proc., §§ 473, subd. (b); 473.5.)

To grant and strike the entry of default as to defendant RMR Trans Inc. entered on November 24, 2025, and the default judgement on January 12, 2026. (Code Civ. Proc., §§ 473, subd. (b); 473.5.)

Defendants, RMR Trans Inc. and M&J Truckline, LLC, are directed to file the proposed responsive pleading within five days of service of the order by the clerk.

**If oral argument is timely requested, it will be entertained on
Wednesday, May 27, 2026, at 3:30 p.m. in Department 403.**

Explanation:

Defendants RMR Trans Inc. and M&J Truckline, LLC ("Defendants") separately move to set aside default, entered against them on November 24, 2025, and default judgement entered on January 12, 2026, pursuant to the discretionary relief afforded under Code of Civil Procedure section 473, subdivisions (b) and (d), and section 473.5

Defendants jointly argue that they are entitled to relief under Code of Civil Procedure section 473, subdivision (d) because defective service of summons rendered the entry of default void. Where there is not a valid service of summons, any judgment violates due process of law. (*Peralta v. Heights Med. Ctr., Inc.* (1988) 485 U.S. 80, 84-85.; *Calvert v. Al Binali* (2018) 29 Cal.App.5th 954, 960-961.)

Code of Civil Procedure, section 473, subdivision (d) provides that the court may set aside any void judgement or order. If a defendant is a corporation, a copy of the summons and complaint must be served to the designated agent or to an enumerated officer of the corporation. (Code Civ. Proc., § 416.10.) An officer of the corporation includes a general manager, which is any agent of sufficient character and rank to make it reasonably certain that the defendant will be apprised of the service made. (*Gray v. Mazda Motor of America, Inc.* (C.D. Cal. 2008) 560 F.Supp.2d 928, 930.) If the defendant is a corporate entity, service may be made in the first instance by substitute service. (Code Civ. Proc., § 415.20, subd. (a).)

RMR Trans Inc. is a corporation, thus, Code of Civil Procedure section 416.10 is applicable. Plaintiff was required to deliver a copy of the summons and complaint to the person designated as agent for service of process, which was Mangal Singh. (Code Civ. Proc., § 416.10, subd. (a).) While service was made at the agent's address, it was to Mohammad Singh, indicated as "Person in Charge" on the proof of service of summons. Plaintiff Harjot S Dhillon ("Plaintiff") submits that this constituted substitute service on the agent for service of process. In other words, Plaintiff submits that service was effected on the agent for service of process at the person's office or usual mailing address. (Code Civ. Proc., § 415.20, subd. (a).) This does not require, as Defendants suggest, reasonable diligence. (*Compare id.*, § 415.20, subd. (b).) Accordingly, service to RMR Trans Inc. was valid and does not render the entry of default and default judgment void under Code of Civil Procedure section 473, subdivision (d).

Defendant M&J Truckline, LLC also argues that service of the summons and complaint to M&J Truckline, LLC, was defective.

If defendant is a limited liability company, a copy of the summons and complaint may be served to a designated agent by personal service, substitute service, or service by mail with acknowledgement of receipt. (Code Civ. Proc., §§ 415.10, 415.20, subd. (a), and 415.30, subd. (a).) Substitute service is effective if copies of the summons and complaint are delivered to the person's office or left with a person who is apparently in charge who shall be informed of the contents thereof, and thereafter mailed to defendant. (*Ibid.*) Substantial compliance with the statutes governing service of summons may defeat a motion to set aside under section 473, subdivision (d). (*Ramos v. Homeward Residential, Inc.* (2014) 223 Cal.App.4th 1434, 1443.)

M&J Truckline LLC is a limited liability company. Thus, Corporations Code section 17701.16 controls. Service may be effected on the individual designated by the limited liability company as its agent. (Corps. Code, § 17701.16, subd. (b).) Code of Civil Procedure sections 415.10 and 415.20 apply. (See also Code Civ. Proc., § 416.40.) The proof of service states that the address for M&J Truckline LLC was a home and the individual served was Raj Kaur, "Spouse." Code of Civil Procedure section 415.20 for substitute service applies. Plaintiff effected service at the company's address to an individual other than the designated agent. Then, Plaintiff promptly mailed the documents to the same address. It appears Plaintiff substantially complied with Code of Civil Procedure section 415.20 by serving a member of the household at the address listed for the limited liability company and mailing a copy of the summons and complaint to the same address immediately after. Because Plaintiff substantially complied with the statute, the entry of default is not void under Code of Civil Procedure section 473, subdivision (d).

Defendants next argue that they did not receive actual notice of the action, and move under Code of Civil Procedure section 473.5 to set aside the entry of default and the default judgement.

If a party does not receive actual notice from service of a summons, an entry of default or a default judgement can be set aside under Code of Civil Procedure section 473.5. The party may serve and file a notice of motion to set aside the entry of default or

default judgement and for leave to defend the action. (Code Civ. Proc., § 473.5, subd. (a).) The party must file an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect. (*Id.*, § 473.5, subd. (b).) The party shall also serve and file with the notice a copy of the answer or other pleading proposed to be filed in the action. The party has 180 days after service of a written notice that the default or default judgement has been entered to serve and file the notice of motion to set aside. (*Id.*, § 473.5, subd. (a).)

Defendant M&J Truckline LLC makes a sufficient showing under Code of Civil Procedure section 473.5 such that the court may set aside the entry of default and default judgement. The designated agent for M&J Truckline LLC filed an affidavit stating that they did not have actual notice of the action before the default judgement on January 12, 2026, and it was not due to avoidance of service or inexcusable neglect. M&J Truckline LLC's motion was timely and included a copy of a proposed answer.

Similarly, defendant RMR Trans Inc. attests that it did not have actual notice of the action, and it was not due to avoidance of service or inexcusable neglect. RMR Trans Inc.'s motion was timely and included a copy of a proposed answer.

Even where actual notice was obtained, Defendants argue in the alternative, that they are entitled to relief under the discretionary provision of the statute because their failure to file a response to the complaint was the result of mistake, inadvertence, surprise, or excusable neglect.

The court is empowered to relieve a party "upon any terms as may be just ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) The trial court has broad discretion to vacate the judgment and/or the clerk's entry of default that preceded it. That discretion can be exercised only if the moving party establishes a proper ground for relief, by the proper procedure, and within the statutory time limits. (*Cruz v. Fagor America, Inc.* (2007) 146 Cal.App.4th 488, 495.) "Application for this relief ... shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc., § 473, subd. (b).) "Because the law favors disposing of cases on their merits, 'any doubts in applying section 473 must be resolved in favor of the party seeking relief from default [citations]. Therefore, a trial court order denying relief is scrutinized more carefully than an order permitting trial on the merits' (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233 [superseded by statute on other grounds])." (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 135.) Where the party seeking relief seeks such relief promptly and no prejudice will result to the opposing party, "very slight evidence will be required to justify a court in setting aside the default." (*Elston v. City of Turlock, supra*, 38 Cal.3d at p. 233.)

Here, Defendants acted quickly upon learning of the default and default judgment and timely filed the instant motion. Critically, Plaintiff has presented no evidence of prejudice, and the law favors dispositions on the merits over procedural technicalities. The court additionally finds that relief is warranted under Code of Civil Procedure section 473, subdivision (b).

For the above reasons, the motion is granted and the defaults entered on November 24, 2025 and default judgement on January 12, 2026 as to each of Defendants are stricken.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img on 5-13-26
(Judge's initials) (Date)